



CHAPTER lxxiii.

An Act to authorise the abandonment of certain existing and authorised tramways of the London United Tramways Limited in the borough of Richmond (Surrey) and to repeal and amend the provisions of the existing enactments relative thereto to authorise agreements between the London United Tramways Limited and the urban district council of Chiswick and for other purposes. A.D. 1912

[7th August 1912.]

WHEREAS the London United Tramways Limited (in this Act called "the Company") under and by virtue of the London United Tramways Acts 1873 to 1911 are the owners of a system of tramways and light railways situate in the counties of Middlesex Surrey and London and comprising upwards of fifty-five miles of tramway and light railway:

And whereas the whole system of the Company with the exception of a tramway in Kew Road Richmond (Surrey) has been equipped for working and is being worked on the system of electric traction known as the overhead system while the said tramway in Kew Road is being worked by horse traction:

And whereas by the London United Tramways Act 1902 powers were conferred upon the Company for the construction among others of a tramway therein described as Tramway No. 7 and intended to be laid in substitution for and in extension of the existing line in Kew Road: 2 Edw. 7.
c. cexlvii.

And whereas in the same Act provisions were inserted for the protection of the mayor aldermen and burgesses of the borough of Richmond (Surrey) (hereinafter called "the cor-

A.D. 1912. poration") whereby it was provided (inter alia) that in consideration of the extension of the time at which the right of the corporation to purchase the part of the undertaking of the Company in the borough of Richmond should first arise the Company should pay to the corporation until the purchase of the tramways the sum of one thousand two hundred and fifty pounds per annum and it was also provided that the Company should not adopt any overhead system of electric traction in any part of the said Kew Road but should adopt such other system of electric traction as the corporation should approve :

6 Edw. 7.
c. cli.

8 Edw. 7.
c. c.

And whereas by the London United Tramways Act 1906 the time for the construction of the said Tramway No. 7 was extended and by the London United Tramways Act 1908 was further extended it being provided by the lastly recited Act that (unless otherwise agreed between the corporation and the Company) the Company should in the circumstances therein mentioned pay to the corporation as liquidated damages the sum of five pounds for each day after the first day of August one thousand nine hundred and ten until the said tramway and the tramways authorised by the London United Tramways Act 1908 should be completed and opened for public traffic :

And whereas by the London United Tramways Act 1908 it is also provided that without the consent of the corporation the Company should not adopt any overhead system of electric traction on any part of the tramways over Kew Bridge by that Act authorised :

10 Edw. 7.
and 1 Geo. 5.
c. cxii.

And whereas by the London United Tramways Act 1910 the time for the construction of the said Tramway No. 7 was again extended and provisions were therein contained enabling the Company and the corporation by agreement to vary the recited provisions of the London United Tramways Act 1902 and it was also provided that if the Company should not have substantially commenced the works in connection with the construction of the said Tramway No. 7 before the first day of August one thousand nine hundred and eleven the corporation should on that date become entitled to exercise the power of purchase which by the London United Tramways Act 1902 was postponed :

1 & 2 Geo. 5.
c. xi.

And whereas by the London United Tramways Act 1911 the time for the completion of the said Tramway No. 7 was again extended and the operation of the recited provisions of

the London United Tramways Act 1910 was suspended for a period of one year and the time now limited for the construction of the said Tramway No. 7 authorised by the London United Tramways Act 1902 will expire on the first day of August one thousand nine hundred and twelve : A.D. 1912.

And whereas the Company have been unable to find any practicable system for working by electric traction the said Tramway No. 7 and the tramways authorised in connection therewith other than the overhead system and it is expedient that the Company be relieved from all their obligations to the corporation in respect of those tramways and the said existing tramway in Kew Road and that they be authorised to take up and abandon that tramway and to abandon the said Tramway No. 7 :

And whereas an agreement has been provisionally arrived at between the Chiswick Urban District Council and the Company with respect to various matters including the alteration of the date at which the council may under the powers conferred upon them by the Tramways Act 1870 purchase the part of the tramways of the Company situate in the urban district of Chiswick but doubts have arisen as to the power of the said council to enter into agreements with respect to the alteration of their said powers and it is expedient that the said council should be authorised as in this Act provided to enter into and carry into effect agreements with the Company for that purpose :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited for all purposes as the London United Tramways Act 1912 and the London United Tramways Acts 1873 to 1911 and this Act may be cited as the London United Tramways Acts 1873 to 1912.

Short title
and citation.

A.D. 1912.

Interpreta-
tion.

2. In and for the purposes of this Act—

The expression “the Company” means the London United Tramways Limited;

The expression “the corporation” means the mayor aldermen and burgesses of the borough of Richmond (Surrey);

The expression “the council” means the Chiswick Urban District Council..

RICHMOND TRAMWAYS.

Power to
abandon
tramways.

3.—(1) The Company may and shall abandon and shall cease to be under any obligations with respect to the construction of the said Tramway No. 7 and may abandon and discontinue the existing tramway of the Company in Kew Road in the borough of Richmond and may and shall take up and remove such existing tramway.

(2) Upon the passing of this Act all the powers rights duties and obligations of the Company in respect of the said Tramway No. 7 and the said existing tramway shall cease and determine and section 31 (For protection of corporation of Richmond) of the London United Tramways Act 1902 and section 6 (For protection of corporation of Richmond) of the London United Tramways Act 1908 and section 5 (For protection of corporation of Richmond) of the London United Tramways Act 1910 shall be and the same are hereby repealed.

(3) The Company shall be and they are hereby relieved from any obligation to make any payments to the corporation in respect of the said Tramway No. 7 or the said existing tramway or the said tramways authorised by the London United Tramways Act 1908 whether the liability for such payments arises under the provisions of the London United Tramways Acts 1873 to 1911 or otherwise.

CHISWICK TRAMWAYS.

Agreements
between
Company
and council
as to pur-
chase of
tramways.

4. The council and the Company may enter into and carry into effect agreements with respect to the alteration of the date at which the powers of the Council to purchase the part of the tramways of the Company in the urban district of Chiswick shall first arise:

Provided that no such agreement shall postpone such date A.D. 19
beyond the twelfth day of August one thousand nine hundred
and thirty-five.

GENERAL.

5. The Company shall deliver to the Registrar of Joint Copy of
Stock Companies a printed copy of this Act and he shall retain to be regi
and register the same and if such copy is not so delivered within tered.
three months from the passing of this Act the Company shall
incur a penalty not exceeding two pounds for every day after
the expiration of those three months during which the default
continues and any director or manager of the Company who
knowingly and wilfully authorises such default shall incur the
like penalty Every penalty under this section shall be recoverable
summarily.

There shall be paid to the registrar by the Company on
such copy being registered the like fee as is for the time being
payable under the Companies (Consolidation) Act 1908 on
registration of any document other than the memorandum or
the abstract required to be filed with the registrar by a receiver
or manager or the statement required to be sent to the registrar
by the liquidator in a winding up in England.

6. All costs charges and expenses of and incident to the Costs of A
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

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